

23AVCV01296 23AVCV01296

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-08-17

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ATP%2CA14%2C08%2F17%2F2026

Source SHA-256: fe28c7ea9ca376c4ba6bbafd045de9a63a2665946539d9980467b6f039cae908

Case Number: 23AVCV01296 Hearing Date: August 17, 2026 Dept: A14

23AVCV01296 ROBERT CHARLES TOCCO vs FCA US,
LLC, et al.

The

following are the Court's rulings on the parties' Motions in Limine ("MILs").

Because the following rulings on the motions in limine are based upon evidence known at the present time, these rulings are only tentative and may be subject to change as the evidence unfolds. (See Scott v. C.R. Bard, Inc. (2014) 231 Cal.App.4th 763.)

Plaintiff's

MILs

PLAINTIFF'S

MOTION IN LIMINE NO. 1 TO EXCLUDE SETTLEMENT DISCUSSIONS – GRANTED. Such matters are not relevant to any claim or defense and are potentially prejudicial and, thus, should be excluded under Evidence Code § 352.

PLAINTIFF'S MOTION IN LIMINE NO. 2

TO EXCLUDE EVIDENCE, TESTIMONY OR ARGUMENT THAT DEFENDANT PROPOSED ARBITRATION AS A RESOLUTION TO THIS MATTER –

GRANTED. Such matters are not relevant to any claim or defense and are potentially prejudicial and, thus, should be excluded under Evidence Code § 352. Because Plaintiff does not seek relief under Civil Code § 1794(e) or § 1793.22, evidence of the existence or Plaintiff's use of Defendant's optional arbitration program is irrelevant to the claims raised in this case. The Court rejects Defendant's argument that its

arbitration program is relevant to the question of whether its failure to repurchase or replace the vehicle was willful. The existence of this program prior to Defendant's failure has no probative value for the question of willfulness. That said, it would be unfair for Plaintiff to offer evidence that Defendant failed to maintain any arbitration program or did not refer Plaintiff to such a program, without allowing Defendant to offer responsive evidence. The Court's ruling means, therefore, that neither side may refer to any arbitration program in arguing Defendant's willfulness or lack thereof.

PLAINTIFF'S MOTION IN LIMINE NO. 3 TO
EXCLUDE EVIDENCE OR ARGUMENT REFERRING OR RELATING TO ATTORNEY'S FEES AND
LITIGATION COSTS –

GRANTED. Such matters are not relevant to any claim or defense and are potentially prejudicial and, thus, should be excluded under Evidence Code § 352.

PLAINTIFF'S MOTION IN LIMINE NO. 4 TO
EXCLUDE EVIDENCE, TESTIMONY OR ARGUMENT REFERRING OR RELATING TO PLAINTIFF'S
APPLICATION FOR FINANCING AND FINANCIAL CONDITION – GRANTED in part and DENIED in part.
Evidence regarding Plaintiffs' general financial condition bears no probative value to adjudicating the claims. However, Plaintiffs' financing application could offer pertinent evidence to the extent it speaks to the costs associated with the purchase of the vehicle, which are relevant to any damages that Plaintiff may claim to have incurred. While the Court does not rule now that such specific evidence is admissible for the purposes of challenging Plaintiffs' damages claims, the Court does not rule out the possibility of the probative value of such evidence. Accordingly, the Court denies without prejudice the MIL with respect to the finance application or terms, but will weigh the probative value against the prejudicial impact of any such evidence as it arises at trial.

PLAINTIFF'S MOTION IN LIMINE NO. 5 TO
EXCLUDE EVIDENCE OR ARGUMENT REFERRING OR RELATING TO ATTORNEY ADVERTISING –

GRANTED. Such matters are not relevant to any claim or defense and are potentially prejudicial and, thus, should be excluded under Evidence Code § 352. All counsel and parties will be introduced to prospective jurors who will be asked by the Court if they have ever heard of or know any of the parties, lawyers or law firms and, if so, how they came to

hear of or know any of them. The Court may inquire into any prior impressions these potential jurors have of any of the parties or lawyers but this questioning may be conducted out of the earshot of other jurors, because of the potentially prejudicial impact of negative views of individual jurors.

PLAINTIFF'S MOTION IN LIMINE NO. 6 TO
PRECLUDE EVIDENCE AND ARGUMENT THAT TIMELY REVOCATION OF ACCEPTANCE WAS REQUIRED

—

GRANTED. Such matters are not relevant to any claim or defense. Through this motion, Plaintiff raises the concern that Defendant will argue Plaintiff should be denied some or all relief on his Song-Beverly Consumer Warranty Act claims based on the contention that Plaintiff failed to give timely notice to the seller of revocation of acceptance of the vehicle. Although the California Uniform Commercial Code generally requires that a buyer give notice of revocation of acceptance of goods within a reasonable time after their delivery (Comm. Code §§ 2602(1); 2607(3)(a)), the Song-Beverly Consumer Warranty Act, which contains more stringent consumer protections, does not require rejection or revocation of acceptance of a vehicle within a reasonable time or any time at all. (Civ. Code § 1793.2(d); *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1301, 1310; *Krotin v. Porsche Cars North America, Inc.* (1995) 38 Cal.App.4th 294, 300.) As the Court of Appeal explained in *Mexia*, the Commercial Code's requirements that revocation be given within a reasonable time after sale "do not apply to any action brought under the Song-Beverly Act. . . . If the Legislature intended the duration provision to impose a deadline for consumers to give notice of defects under the Song-Beverly Act, it could easily have done so. It did not." (*Ibid.*, at pp. 1307, 1310.)

PLAINTIFF'S MOTION IN LIMINE NO. 7 FOR
AN ORDER ESTABLISHING THAT STATEMENTS MADE BY DEFENDANT'S DEALERSHIP PERSONNEL (WARRANTY AGENTS) ARE NONHEARSAY AND ADMISSIBLE

DENIED without prejudice. The Court cannot determine in the abstract whether various unidentified statements by dealership personnel (1) are or are not hearsay, and (2) are party admissions against Defendant under an actual or ostensible agency theory. As a predicate to admission of such statements as a party admission, Plaintiffs must first establish the dealership personnel are actual or ostensible agents of Defendant.

PLAINTIFF'S MOTION IN LIMINE NO. 8 TO
EXCLUDE EVIDENCE OR ARGUMENT REGARDING DEFENDANT'S §998 STATUTORY OFFER TO
COMPROMISE –

GRANTED. (See Code Civ. Proc. §
998(b)(2).)

Tentative
Rulings on Defense Motions in Limine.

MIL 1 -
TO EXCLUDE EVIDENCE AND TESTIMONY RELATING TO ANY LOSS OF USE, LOSS OF WAGES
AND OTHER CONSEQUENTIAL DAMAGES AT TRIAL

GRANTED, as to lost wages, otherwise DENIED
without prejudice. CACI 3242 and 3243 will be given as instructions. Pursuant
to the Song-Beverly Act, Plaintiff may seek damages incurred by the Plaintiff
incidental to her ownership of the vehicle based upon her cost for the care and
custody of the vehicle. If Plaintiff seeks to introduce evidence of damages
“non-recoverable” under law, specific objection can be made at that time.
Plaintiff does not appear to object to motion to the extent it covers lost
wages.

DEFENDANT'S
MOTION IN LIMINE NO. 2 TO EXCLUDE EVIDENCE, TESTIMONY AND CLAIMS RELATED TO
EMOTIONAL DISTRESS AND SUFFERING.

GRANTED
in part, and DENIED in part,
without prejudice. CACI 3242 and 3243 will be given as instructions. Pursuant
to the Song-Beverly Act, Plaintiff may seek damages incurred by the Plaintiff
incidental to her ownership of the vehicle based upon her cost for the care and
custody of the vehicle. If Plaintiff seeks to introduce evidence of damages
“non-recoverable” under law, specific objection can be made at that time.
Furthermore, no specific evidence is identified. The Court makes note that
Defendant argues that emotional distress is not a recoverable form of damages,
and Plaintiff does not dispute. To that extent, the motion is granted.
Objection to the relevance and prejudicial nature of such evidence will be
ruled upon as it arises.

DEFENDANT'S

MOTION IN LIMINE NO. 3 TO EXCLUDE ANY EVIDENCE AND TESTIMONY RELATING TO
UNREPORTED COMPLAINTS

DENIED, without prejudice. Defendant

identifies no evidence that it seeks to exclude, so the Court cannot make a
reasonable evaluation of admissibility or issue any exclusion order. Kelly
v. New West Fed. Sav. (1996) 49 Cal. App. 4th 659, 670.

The Court

concludes that any objections to evidence of unreported defects should be made
at trial so the Court can determine if the evidence is relevant and otherwise
admissible.

DEFENDANT'S

MOTION IN LIMINE NO. 4 TO PRECLUDE REFERENCE TO ABSENCE OF CORPORATE
REPRESENTATIVE AT TRIAL

GRANTED. Such comments are not relevant to
any claim or defense and are potentially prejudicial and, thus, should be
excluded under Evidence Code § 352. Comments on the presence or absence of any
party as an observer at trial lacks any probative value on any issue at trial.
On the other hand, to the extent that Defendant fails to produce a
knowledgeable witness on a key issue at trial, Plaintiff is free to argue,
consistent with CACI 203 and 205, that Defendant had the ability to produce a
corporate representative as a witness at trial to offer stronger evidence on a
subject but failed to do so.

DEFENDANT'S

MOTION IN LIMINE NO. 5 TO PRECLUDE PLAINTIFF INTRODUCING WITNESSES, EVIDENCE,
OR CONTENTIONS NOT DISCLOSED IN HIS DISCOVERY AND ANY CLAIMS OR CAUSES OF
ACTION NOT SET FORTH IN PLAINTIFF'S COMPLAINT.

DENIED without prejudice. This motion
can be renewed in connection with specific evidence.

DEFENDANT'S MOTION IN LIMINE NO. 6

TO EXCLUDE ANY ATTEMPTS BY PLAINTIFF AND/OR HIS COUNSEL TO INTRODUCE
EVIDENCE/TESTIMONY ABOUT SIMILAR COMPLAINTS, LAWSUITS, INTERNET CHAT AND OTHER

HEARSAY EVIDENCE AT TRIAL

DENIED

in part, without prejudice, and GRANTED in part. Defendant seeks a broad exclusion order that would bar admission of several categories of documents and evidence without submitting or even identifying any documents for the Court's consideration. No meaningful order can be issued based on such a motion. *Kelly v. New West Fed. Sav.* (1996) 49 Cal. App. 4th 659, 670. Moreover, as Plaintiffs' opposition demonstrates, courts have properly admitted and considered documents falling within the categories

Defendant

targets for exclusion categories of evidence/testimony that could be relevant and admissible depending on the particular evidence and circumstances. (E.g., *Donlen v. Ford*, supra, at p. 153 [manufacturer's special service message as evidence of its knowledge of transmission problem in the truck model bought by plaintiff]; *Jensen v. BMW of N. America, Inc.* (1995) 35 Cal. App. 4th 112, 135 [manufacturer's technical bulletin alerted dealerships to brake problem]; *Santana v. FCA*, supra, at pp. 345-347 [internal emails about manufacturer's awareness of the problem is probative of willfulness sufficient to support civil penalty].) While there may be hearsay problems with some evidence offered, it may have a non-hearsay purpose that would allow it to be offered to prove notice, knowledge, or intentional refusal to repair. While there may be undue prejudice that might arise from admission of a particular document, that prejudice may be outweighed by the highly relevant nature of the document's contents. The Court cannot evaluate these evidentiary issues without reviewing the proffered evidence and hearing arguments about whether it should be admitted. Accordingly, the Court denies the motion for failure to identify any evidence to be excluded.

To the

extent Defendant seeks to exclude evidence of other lawsuits, the motion is GRANTED, subject to renewal depending on the evidence and the proffered purpose.

DEFENDANT'S

MOTION IN LIMINE NO. 7 TO EXCLUDE ANY REFERENCE, TESTIMONY AND EVIDENCE RELATING TO VEHICLE COMPLAINTS WHICH WERE REPAIRED AFTER THE FIRST ATTEMPT.

DENIED,

without prejudice. Defendant

seeks a broad exclusion order that would bar admission of several categories of documents and evidence without submitting or identifying any such particular evidence for the Court's consideration. No meaningful order can be issued based on such a motion. *Kelly v. New West Fed. Sav.* (1996) 49 Cal. App. 4th 659, 670

Furthermore,

the Court finds first that there could be no categorical exclusion of such evidence under *Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205, on which Defendant relies, for Plaintiff's claim under Civil Code §1793.2(b), because liability under that provision is not dictated by the number of repair attempts but by the failure to repair a vehicle within 30 days of its presentation for repair. Because the parties do not highlight precisely what evidence would be offered to support this claim and, thus, could not be excluded based on Defendant's argument, the Court cannot make a wholesale exclusion order as requested by Defendant.

Moreover,

the Court concludes that Defendant's reliance on *Silvio* is misplaced even with respect to Plaintiff's claim under Civil Code § 1793.2(d)(2). In *Silvio*, the consumer presented his car for repair only once and, when the problem persisted, demanded a repurchase. Based on this factual scenario, the Court of Appeal held that the consumer had not stated a claim under Civil Code § 1793.2(d), because that statute offers remedies where the car manufacturer is "unable to service or repair a new motor vehicle . . . to conform to the applicable express warranties after a reasonable number of attempts." (Civ. Code § 1793.2(d)(2).) Construing the statutory language referring to "a reasonable number of attempts," the Court noted that "attempts" is plural, thus requiring that more than one repair opportunity was necessary to state a claim. (*Silvio*, at pp. 1208-1209.) Contrary to Defendant's suggestion, the *Silvio* court did not rule that there must be multiple repair opportunities for the same vehicle problem. What is more, the Court agrees with Plaintiff that the question of whether the underlying defects confronted by Plaintiff were related to one another or stemmed from a single systemic failing is a factual question to be determined by the jury based on the entire repair record for Plaintiff's vehicle, their testimony about the nature of the defects they experienced and reported, expert testimony by both sides' designated experts, and other materials that might inform the jury's deliberations.

DEFENDANT'S

MOTION IN LIMINE NO. 8 TO EXCLUDE REPAIRS OR CUSTOMER CONCERNS NOT COVERED BY ANY APPLICABLE WARRANTY.

DENIED,

without prejudice. Defendant

seeks a broad exclusion order that would bar admission of several categories of documents without submitting or even identifying any documents for the Court's consideration. No meaningful order can be issued based on such a motion. *Kelly v. New West Fed. Sav.* (1996) 49 Cal. App. 4th 659, 670.

Furthermore,

there are circumstances where a non-warranty repair could tend to show that the vehicle did not conform to the express warranty. (*Donlen v. Ford, supra*, at 149.)